

CHAPTER 2

Jus ad Bellum #1

Resisting Aggression

“[N]o just war can be waged except for the purpose
of punishment or repelling enemies.”
Cicero¹

The core proposition of just war theory, uniting all its theorists, is this: *sometimes, it is at least morally permissible for a political community to go to war*. This is to say that there *can* be such a thing as a morally justified war; and World War II, on the part of the Allies, is often trotted out as the definitive modern example. Some even refer to this conflict as “The Good War.”²

The goal of just war theory is to restrain both the incidence and destructiveness of warfare. Just war theory seeks to minimize *the reasons* for which it is permissible to fight, and seeks to restrain and limit *the means* with which communities may fight. Just war theory is *not* pro-war. It is, rather, a doctrine deeply aware of war’s frightful dangers and brutal inhumanities. It seeks, accordingly, to reduce those dangers, and purge those inhumanities, by insisting that belligerents respect human rights as best they can during the grim circumstances of war.

While there are disagreements between just war theorists—no tradition or discipline generates unanimity—the clear majority endorse some version of the following principles. There is thought to be a fundamental division between the ethics of *resorting* to force—or in Latin “*jus ad bellum*” (literally “the justice *of* war”) and the ethics of conduct *during* armed conflict (or “*jus in bello*,” literally “justice *in* war”). Most just war theorists insist that *jus ad bellum* and *jus in bello* are, in a salient sense, separate. The notion is that a war can be begun for just reasons, yet prosecuted in an unjust fashion. (For instance, while World War II is called “The Good War” in terms of its cause, many still raise critical doubts about some Allied tactics, notably the use of atomic weapons.) Similarly, though perhaps much less commonly, a war begun for unjust reasons might (conceivably) still be fought with strict adherence to *jus in bello*. The categories are at least logically or conceptually distinct, and so we must consider them separately, each with their own rules and considerations. For example, the *jus ad bellum* criteria are thought to be the preserve and responsibility of political leaders whereas the *jus in bello*

criteria are thought to be the province and responsibility of military commanders, officers and soldiers. Ultimately in this book, I am going to argue that there is a robust connection between *jus ad bellum* and *jus in bello*. This defies tradition. Even so, I admit that one category can be *focused upon one*, and then the other (without admitting they are literally separate). And so that is what we shall do.

A state resorts to war justly only if it satisfies *each of six major rules*: just cause, right intention, public declaration by proper authority, last resort, probability of success and proportionality.

Just Cause

International law allows countries to defend themselves with force if they are victimized by an armed attack; it also allows them to so defend other countries should *they* be attacked. These entitlements commonly get referred to, respectively, as “self-defence from aggression” and “other-defence from aggression” (also called a “war of law enforcement”). These are the two most elemental just causes for war in international law and just war theory. No other kinds of warfare are allowed in international law unless explicitly authorized and endorsed by the United Nations’ Security Council (UNSC).

The UNSC is empowered by the UN Charter to try to keep war from breaking out. It has 5 permanent members, who can veto any resolution. These are: America, Britain, China, France, and Russia. It also features 10 non-permanent members, who hold rotating two year terms and can propose, and vote on, resolutions—but can never veto them. This means that there are 15 UNSC members at any given time and a resolution on war and peace, to pass, must enjoy majority support with no vetos.

Self-defence and other-defence are referred to as “inherent rights” (even, in French, as natural rights) of states by Article 51 of the UN Charter. Note that what is being defended against is aggression and *aggression is an armed attack against another country who is a member of the UN*. A bit more on the “armed attack” part: suppose that you are a small country, C, next to a big neighbour, N. In response to domestic lobby groups, the government of N decides to close its border to your forestry exports (trees, lumber, etc.). You are devastated, because your forestry sector is your economy’s biggest and your economy is going to suffer severely (lost trade, layoffs, plant shut-downs, a recession). This is pretty tough treatment by N against C: it is not nice; it is completely undiplomatic; and it might even violate a trade treaty. But international law, and just war theory, insist that, rough as it may be, it is not treatment severe enough to merit warfare in response. It is only when the tough treatment in question *is coupled with physical violence* that we can begin to contemplate armed conflict. This makes clear sense: in interpersonal life (e.g., we do not think getting fired is a sufficient reason to retaliate with violence, even if the firing sharply harms our interests). The loss—the

danger—is merely economic. But most of us do think that, when someone physically attacks us (or those we love) with brute violence, we may employ physical force in response, seeking to resist the attacker, force him to stop and to protect ourselves or others from even deeper hurt. So for an international act to count as aggression, it must not merely be objectionable or even damaging to a country's interests. It must, at the same time, involve the infliction of serious, direct physical force. Almost always in international affairs, this involves the deployment of a country's armed forces—by land, sea or air—into the territory and/or against the people or government of another country. The classic example of international aggression is when one country uses its armed forces to launch an invasion into another country, with the objective being military, political and economic conquest, such as Nazi Germany did to Poland in 1939 or Iraq did to Kuwait in 1990.

International law only stipulates *that* aggression is wrong and punishable with war in response; it does not explain *why*. Similarly, international law only dictates that states *have* the right not to be subject to aggression; it fails to explain *why*. It is the job of just war theory to fill in these gaps. Let's start with the issue of state rights. Why do states—like the government of the US—have rights? Which rights do they have? What are the underlying principles here?³

STATE RIGHTS AND HUMAN RIGHTS

The main purpose of the state, in our era, is to do its part in realizing the human rights of its people. That is the state's reason-for-being, and if a state fails in that regard, its people have no reason to obey it and stick with the social contract. This is absolutely foundational: to believe otherwise is to reject any moral role for the state, and view it purely through the prism of power. Such a bleak view offers only fear as a reason to obey the state. This is not, however, a mature and fitting conception of political life for grown human beings: they have the right to participate in their own governance—since it so deeply affects their lives—and they need a moral reason to do so. There's no better one than that such participation will help them realize their own human rights, which is to say their own vital human needs. So state rights are *authorized and delimited* by the human rights of individuals, much as Locke had speculated.⁴

Human rights are core entitlements we all have to those things we *both* vitally need as human beings *and* which we can reasonably demand from other people and social institutions. Which things are these? As I have argued elsewhere,⁵ the most important set of human rights objects are “the foundational five”: physical security; material subsistence; personal freedom; elemental equality; and social recognition as a person and rightsholder. These are the things we all need to live minimally decent and tolerable lives in the modern world. They are, as James Nickel says, “what we want, no matter

what we want.” Whatever else we want out of life, we need the all-purpose means of security, subsistence, freedom, etc., which are required to pursue them in the first place. Try becoming a movie star without security; try becoming head of state without subsistence; try pursuing anything without the very freedom to do so. We each therefore have the most powerful reasons of self-interest to claim these foundational five objects as human rights. Such rights are, as John Rawls has said, the very basis for moral and political legitimacy in our time.⁶

What does it mean to realize human rights, thus defined? Human rights are realized or respected when everyone *actually possesses* the objects of their human rights. Your human right to physical security, is satisfied or fulfilled when you actually enjoy life in a safe, secure social setting. If state rights are dependent upon, and delimited by, individual human rights, what does all this imply for state rights? It implies that states themselves must have rights to those objects genuinely needed to enable them *to do their part* in realizing the human rights of their people. Which objects are these? Though there are others,⁷ generally we speak of political sovereignty and territorial integrity.

Political sovereignty is the right of a people to govern itself. This is to say the right of a community to make its own choices about how life gets organized in its land: the kinds of institutions it wants; the kind of laws it is willing to live by; the kind of culture, values and traditions it wishes to impart to the next generation; and so forth. Fundamentally, political sovereignty is rooted: 1) negatively, in our disdain for aggressive foreign domination; and 2) positively, in the individual human rights to freedom and security possessed by everyone within that community.

It is a common human failing to want to tell other people what to do. It is a further failing *to force* other people to do what we want them to do, whether such “force” is through yelling, psychological manipulation or physical violence. This is true between groups as well as persons. Usually, though, we think this wrong. Interpersonally, we call it coercion. Internationally, we call it aggression. In either case, it is a drive for dominance over others which fails to respect the right of others to live freely-chosen, and thus fully human, lives. *This core drive for dominance is, I believe, the basic cause of all unjust wars.* The right of political sovereignty is designed to resist foreign dominance, by stipulating that a people freely grouped together politically has the right to its own political life and hence the entitlement not to be forced to succumb to the rule of others whom it does not recognize as legitimate rulers or indeed as part of its community at all.

Territorial integrity depends upon political sovereignty; the latter is logically and morally prior to the former. A state needs territory because its people all have to live *somewhere*, and it needs resources because human rights do not come for free. For example, the human right to physical security implies the creation of law and order within a society, and that involves having

a military and police force, and the construction and running of an effective judicial system—all of which absorb large resources. International law reflects these material needs by enshrining a state's right to territorial integrity, and by treating a state as the “owner” of all the natural resources within that territory and as the ultimate taxation authority within that land as well.

Political sovereignty and territorial integrity are tightly linked, and they are ultimately rooted in some of the deepest facets of human nature: 1) we strongly prefer to live in groups; 2) we prefer to govern ourselves; and 3) we need land and resources. To protect these traits and values, international law endorses territorial integrity and political sovereignty as bedrock principles.

Now, international law apparently extends these state rights to *all* member states of the UN, regardless of how unsavoury some of these regimes might be. The UN—even though it has the authority under its Charter to kick out terrible regimes—has decided that it is better for everyone to be “inside the tent,” so to speak, with no state left outside, for fear it might get even worse. While there is some wisdom in this approach, it can also raise sharp moral questions, such as: why should we believe horrible states have rights? If a state has rights in order to protect and realize the human rights of its own people, and that state uses its power to violate the human rights of its own people, why should we respect its “sovereignty” and the “integrity” of its territory? The very grounding of its state claims has evaporated! Granted, there might be good *strategic* reasons to lay off such a state but it does not seem there's a *moral* case to view these states as having rights (which, after all, are moral entitlements). There has always been this tension in modern international law: do we recognize as legitimate a state or government merely because it has the most power in that society, or do we recognize it only if it *also* uses that power in a morally adequate way (at the least, by refraining from massively violating the human rights of its own people)?⁸ The former way is the way of realism, and we shall discuss its nature and limitations in Chapter 8. Just war theory has always endorsed the latter, from at least the time of Aquinas. Only a morally fit—or, as I prefer to say, a minimally just—government has the right to go to war. *It is inescapable, as I have said, that all talk of justice regarding war must revolve ultimately around legitimate governance.*

MINIMAL JUSTICE AND STATE RIGHTS

Minimally just societies: 1) are generally recognized as such by their own people and the international community. The international community extends this recognition by allowing the society to enjoy membership in various international associations and events (e.g., the World Health Organization or The Olympics). Various countries also do things like send ambassadors to, and open embassies in, that society as well as enter into agreements with it (e.g., involving trade). The society is not shunned on a widespread basis nor is

it the subject of pervasive official criticism or scepticism about its fitness to organize life in its community. The most obvious way for a people to show it recognizes its own government as legitimate would be through majority endorsement in periodic free and fair elections. It is not the only way—simply the most obvious and verifiable. Another way would be the prevalence of peace and stability in the country (i.e., the absence of civil war, revolutionary activity, sustained and large violent protests against the government and such). Crucially, though, this lack of internal conflict cannot be because of huge amounts of armed coercion on the part of the state against its people. There are, after all, ruthless police state dictatorships which impose social peace. So we must discern that the prevalence of social peace is not forced upon the people, rather, it is freely chosen by the people and hence indicative of their general acceptance of the political order.

Minimally just societies also: 2) avoid violating the rights of other countries. In particular, decent societies do not commit aggression against other states and nations. If they do so, they forfeit rights not to be resisted—with armed force if need be.

Finally, minimally just societies: 3) make every reasonable effort to satisfy the human rights of their own citizens. Why only “every reasonable effort” to satisfy and not, simply, “satisfies” these human rights? Well, we cannot require perfection, since even very good societies have some human rights problems. We can only require serious efforts and sincere intentions. There are two reasons why societies clearly fail to realize human rights: 1) they want to realize them but simply lack the resources needed; or 2) they do not want to realize them since they do not care about widespread human rights fulfilment. Only the second reason violates this category, since such regimes have wicked intentions and no desire to create minimally good lives for their people. Usually, such countries are governed by a malevolent minority, which hordes power and wealth, and either discriminates against and/or cares not a whit for, the well-being of the majority. The set of governments in the first group requires our assistance with human rights realization. The second set, though, does not deserve recognition as rights-bearing states with the authority to go to war.

It’s fair to say that very many states around the world do satisfy these three criteria, and thus count as legitimate rights-bearing states. So international law and just war theory line up here. But some states do not, and will not. Here is where international law and just war theory must part ways a little bit. The laws of armed conflict recognize a country as a rights bearer if it is a member of the UN; nothing more being required. If you’re a UN member state, and you’re attacked with force, you have the legal right to go to war in response. Just war theory has traditionally insisted that states show some moral fitness before being authorized with the war power. Why? Well, why shower national governments with rights if these governments lack basic moral legitimacy? Indeed, it seems paradoxical to suggest an *immoral* form

of governance has a *moral* right to arm and defend itself. Why privilege the governance of the nation-state (when other forms of governance are possible—cosmopolitan or regional or municipal) if the nation-state does not deserve it? *The only way it deserves it is by earning it through its respect for, and empowerment of, the human rights of its own citizens and those of others.* States which are like this truly do have moral value and are worth enabling and protecting.

Fundamentally, it is the difference between *legal* rights and *moral* rights. Legally, any UN member state has the right to go to war to resist aggression directed either against itself or another UN member. But morally, only those states which are minimally just have rights to sovereignty, territory and to resist aggression. So, most times just war theory and the laws of armed conflict run together and are mutually confirming: we'll see this throughout.⁹ But other times they are not and I'm more concerned to defend and forward just war theory when that happens. Why? First, because just war theory explains its values whereas international law merely asserts them. Second, because international law (like all law) lags behind the times somewhat whereas our theories need not. Third, because international law is the product of state consensus, and sometimes consensus is wrong. Sometimes the laws of armed conflict enshrine a bad law, or fail to include a good law. Just war theory, better than any other, helps guide international law towards correction in this regard.

We'll say more about the role of human rights realization in the foundation for political legitimacy when we talk about the rule of proper authority. For now, we have what we need to progress on the just cause rule for going to war.

FORFEITURE AND THE MORAL CORE

Aggression is the focus in just cause, and aggression in the first instance is an armed attack which violates a state's rights and, in the most critical instance, is an armed attack which violates the human rights of people to live in security and freedom. It is a prominent feature of everything said so far that the commission of aggression causes a state to forfeit, or give up, its rights to territorial integrity and political sovereignty, rendering permissible an invasive military response on the part of the victim and/or any third-party "vindicators" or law enforcers. Let us add more rigour and depth here—it's harder, but it is worth it—and flesh all these thoughts out as our "Core Principle on Aggression" (CPA):

the commission of aggression by any aggressor A, against any victim V, entitles V—and/or any third-party vindicator T, acting on behalf of V—to employ all necessary means to stop A, including lethal force, *provided* that such means do not themselves violate human rights.

This seems a complicated principle, but when it is broken down, we'll see that it is readily digestible and full of good sense. It stands at the foundation

of everything which follows. Let us now understand the relevant agents A, V and T as states, and let us consider first the reasons why V possesses such an entitlement to go to war: reasonableness; fairness; responsibility; and implicit entitlement.

First, it would be *unreasonable* to deny V permission to take effective measures to protect its people from serious harm, or lethal attack, at the hands of A. Simply put, it is not reasonable, given the kinds of creatures we are, and the kind of world in which we live, to expect a state charged with the responsibility to protect its citizens to capitulate utterly—to just roll over—in the face of aggression. Indeed, one of the core functions of a government is precisely to protect its people from foreign invasion and the accompanying threats of slaughter or slavery.

The *fairness* argument stipulates that it would be not only unreasonable but unfair to deny V the permission to resist A with force, should A unjustly invade. Why? Because, in the absence of such measures, V will suffer substantial loss of life and liberty while A will actually *gain* whatever object it had in mind in attacking V. It seems clear that aggression, and rights-violation, ought not to be unfairly rewarded in this way, both in the particular case and for the sake of not eliciting more such behaviour in the future.

Not only would denying V permission to resist forcibly the aggression of A be both unreasonable and unfair, it would also ignore the fundamental issue of *who bears responsibility* for the choice situation. It is the aggressor A who is responsible for placing V in a situation where V must choose between its rights and those of the aggressor A. (And this point ties neatly into the reasonableness claim, since it is only reasonable to expect V, in such a situation, to choose its own rights.) The aggressor A, if it does not wish to subject itself to the consequences of the resort to defensive force by V, *can always cease and desist* from its aggression. Stop warring if you do not want to be warred upon. So if A does not cease and desist—if it keeps up its aggression—it is hardly in a position to cry foul should V decide to do the reasonable and fair thing and defend itself, and its citizens, with the needed force.

Finally, any victim V has the *implicit entitlement* to use whatever measures are necessary to realize the objects of its rights and those of its citizens. The relevant argument has the following form:

- 1 Minimally just states, as defined previously, have moral and legal rights to territorial integrity and political sovereignty.
- 2 These state rights entitle states *to employ reliable measures necessary to secure* the objects of these rights, and to protect them from severe, predictable threats, such as the violent aggression of others. (This follows as a matter of moral logic: if person P has the right R to object Q, and M is a means necessary to get and secure Q, then P must also have a

right to M. Otherwise, to what extent could we speak of P's original right to Q?)

- 3 There is, presently, no reliable or effective international authority (or global government) which can guarantee to states the possession of the objects of their rights. States are, in the final analysis, on their own with regard to protecting their rights and the objects thereof.
- 4 Currently, the most effective and reliable form of self-help with regard to rights-protection—at least in the last resort against armed aggression—is the use of defensive armed force.
- 5 Thus, faced with armed violation of their rights (i.e., with aggression), states are entitled to employ armed force and war in order to *punish* the rights-violator, *vindicate* their rights, and *re-secure* their objects and those of their citizens' human rights. As Aristotle said, so long ago, the most fundamental just cause for going to war is self-defence: resisting foreign aggression against one's political community.

This brings us to the second core aspect of principle CPA: granted that V possesses entitlement to respond to A's aggression with armed force, how is V to do so *without itself violating rights*? There are two elements to note in response: 1) state A, through the commission of aggression against V, forfeits its state rights not to be attacked with lethal force in return; and 2) provided that V adheres strictly to the norms of *jus in bello* during its just war against A, it will succeed in offering the required "due care" owed to innocent civilians in both states, and thereby avoid violating their rights. It will therefore fully satisfy CPA. Let us deal with each one of these elements in turn.

Why and how does A forfeit its right, as a state, not to be subject to armed attack by committing aggression against V? A forfeits its rights because, as we just saw, *the weight of reasons in the case indicates that no wrong is done to A* in the event that victim V resists A's aggression with means of war. And the weight of reasons in this case must draw on those just offered in defence of V's entitlement to resort to force in the first place: it would be unreasonable, unfair, oblivious of responsibility, and at odds with implicit entitlement to declare that V does wrong in resisting A's aggression with armed force. And if V does no wrong in violently resisting A here, then A must fail to have moral rights that such not be done. It must thus have forfeited its rights.

Since A forfeits its state rights by committing aggression, this permits *any* third party T (or group of third-party states G) to intervene forcibly on behalf of victim V. This legitimacy of other-defence is grounded in the normative core of the victim's claim—namely, that the aggressor either stop or be stopped, regardless of who is the agent. Provided that the demonstrable aim is the protection of the victim and its citizens from rights-violation, armed resistance is permitted to any state willing to take on its associated burdens.

So V's (or T's, or G's) resisting A's aggression against V with armed force will *not* violate A's *state* rights because, by committing aggression, A has forfeited its state rights. But what of the human rights of the individual persons in both A and V (or T and G)? Why and how will launching a just war at the state level not violate these *individual* rights? These rights will not be violated, I submit, provided that V (or T, or G) fully adheres to the other criteria of *jus ad bellum* and *jus in bello*, which will be discussed subsequently. *What this claim importantly asserts is that the principles of just war theory serve to fulfil the human rights of persons as best they can be fulfilled during warfare.*

To sum up so far: a state has a just cause for resorting to war if and only if: 1) it is the victim of aggression, or is coming to the aid of a victim of aggression; 2) it is a minimally just or legitimate state; and 3) its resort to armed force fulfils all aspects of the principle CPA. These three principles revolve, most centrally, around the general norm of protecting and defending minimally just communities and the lives and rights of their individual members. These are the very deepest ideas surrounding the core of just war theory in general, and those aspects of the international laws of armed conflict which have partially been derived from them.

Note how these principles—of reasonableness and fairness, of respect for life and rights, of responsibility for rights-violation—themselves seem implicated, at the most profound level, by the very meaning of a just society, and indeed by human civilization itself. The use of reason to inform action, and a value commitment to fair treatment are all major objectives in a mature and just society, as is the holding of everyone responsible for how they treat their fellows. Finally, respect for rights is truly one of the basic cements of civilization, and a decent and stable society must be committed to understanding, propounding and protecting such rights and, above all, to ensuring that rights-holders actually enjoy secure possession of the objects of their rights. On this intensive reading of the just cause rule, then, *aggression attacks the very moral spine of human civilization itself*. Indeed it does; it reverts us to the laws of the jungle, from which our ancestors struggled so mightily to escape. This is why, if need be, aggression can be resisted with something as strong and dangerous as warfare. Let's take it down from the clouds of abstraction now and look at a recent concrete case.

THE 1991 PERSIAN GULF WAR

In August 1990, Iraq invaded Kuwait. This was a classic instance of a large, militaristic country aggressively attacking a smaller neighbour. Why did Saddam Hussein, dictator of Iraq, order this armed invasion and takeover of Kuwait? He had several reasons, none of them justified but most of them revolving around the fact he had just finished a miserable, destructive conflict with Iran. From 1980–89, Iran and Iraq slugged it out in a very expensive

and bloody war with roots stretching far back in the past. One million people lost their lives in the Iran-Iraq War, in which Saddam portrayed himself as the saviour of moderate Muslims from the fury of radical Islam, which had just come to power in a revolution in Iran in 1979. At the end of the war, Saddam was in a very difficult position. On the one hand, he was still in power and had prevented radical ayatollahs from taking over his country. On the other, the war pushed him into debt and he faced huge reconstruction costs. He asked both Kuwait and Saudi Arabia to forgive the debts he owed them, on grounds he “saved” them from being swept out of power by the ayatollahs. The two countries refused, and Saddam grew furious. His other big problem was that Iraq’s military was restless—and huge. Having grown to over one million men during the long Iran-Iraq War, Iraq’s military was disappointed that Saddam had called off the war against their despised enemy. Moreover, Iraq’s military has long played important roles in various coups and revolutions within Iraq. Saddam feared armed revolt. So he hit upon a “solution”: invade and conquer Kuwait. This would occupy the army, cancel part of Iraq’s debt and give Iraq control over a lucrative asset it could use to help pay for reconstruction. And it might just scare Saudi Arabia into debt forgiveness as well. So the order was given and then executed in the hot days of August, 1990.

None of these reasons, of course, *justify* Iraq’s invasion—they merely *explain* it. War for any kind of economic gain is strictly ruled out, as is the old politician’s trick of using war abroad to try to solve (or, at least, distract attention from) problems at home. Saddam did try to argue that Kuwait had been driving down the world price of oil—and thus Iraq’s own revenues—by supplying too much oil to the world market. But, again, even if that were true—and it is not clear it was—that’s an economic issue and thus not one where military force is a proportionate response. (Remember our forestry example earlier.) Saddam then tried to suggest that—since the ancient Ottoman empire used to administer both Iraq and Kuwait together—Kuwait “belonged to” Iraq anyway, as its “Nineteenth province.” Even if it were true it would be like now arguing that, since Canada used to be part of the British Empire, it should once again today be run from the Mother of All Parliaments in London. Such an argument ignores everything which has happened between then and now—notably, how a new political community came into existence and came therefore to deserve separate protection. Saddam, finally, tried to argue that Kuwait was stealing Iraq’s oil by “slant-drilling” across the border into Iraq’s wells. This was, however, a lie; and, even if it were true, it would still just be an economic issue wherein demanding compensation would be appropriate but not armed invasion. Saddam’s base motives of plunder and pleasing his military became undeniably clear when he authorized them, in the fall of 1990, to pillage Kuwait: raping women at will; stealing private property on a whim; crushing any Kuwaiti resistance; and wreaking havoc constantly. Amnesty International’s December 1990 special

report, on the behaviour of Iraqi soldiers in Kuwait, makes for chilling—even revolting—reading in this regard.¹⁰

We know, from what we have already established, that this kind of freely-chosen, flagrant aggression causes a state to lose its usual right not to be subjected to armed attack, either by the victim community or others coming to its aid. Kuwait's puny armed forces quickly succumbed during the August 1990 invasion. In the fall of 1990, the international community—led by America—generated a huge military build-up in neighbouring Saudi Arabia (i.e., "Operation Desert Shield") and reflected on what to do.

Perhaps it might here be objected that the theory developed thus far establishes that states forfeit rights against attack only when they unjustly attack other states which do not deserve it (i.e., states which are minimally just). While Iraq's attack against Kuwait was unjust—because of the political and economic motives—was Kuwait itself a minimally just state deserving of protection? Well, Kuwait was widely recognized as the legitimate government of that territory; indeed, it had membership in the UN. Kuwait was also, at that time, not involved in violating the rights of other states; unlike Iraq, Kuwait was not using its army to invade, pillage and overthrow foreign governments. But was the Kuwaiti state seen as legitimate by its own people, and making every reasonable effort to satisfy the human rights of its own people? When regular elections are not held, it is hard to judge whether a people genuinely approves of its regime. Plus, the rights of women in most Muslim countries are often seen as not being as fully realized as they should. Does this mean the Kuwaiti regime was not legitimate? It certainly raises issues. But three points stand out: 1) there was uncoerced social peace in Kuwait prior to Iraq's invasion; 2) the Kuwait regime did not attack and brutalize its own people the way the invading Iraqis did in the fall of 1990 (thus the Kuwaiti government had a much better claim to rule that society than Iraq did); and 3) the Kuwaiti regime no longer existed when the West went to war in January, 1991, anyway. And most Western societies, including America, satisfy the criteria of minimal justice. The West went to war to defend *the Kuwaiti people* from Iraqi conquest and brutalization, not so much to restore the old Kuwaiti *regime*. The old regime was restored, it is true, in the spring of 1991 after the war was quickly won by America and its allies. This does not mean the war was unjust in its beginnings. The war may not have had all the desirable effects but the war was just (in its cause) as a war of other-defence against a country which committed aggression perhaps not the very second when it crossed Kuwait's borders but certainly when it unleashed its campaign of plunder and brutality against an unarmed Kuwaiti population.

Failure to resist such aggressive attacks rewards the aggressor and, as such, structures incentives in favour of more aggression in international society. It also penalizes the victim, by doing nothing to reverse the effects of the aggression. By attacking the Kuwaiti people, Saddam's Iraq committed aggression. When it did so, it forfeited its rights not to be attacked in

response. There is very high consensus that this war was just in its cause, and indeed it was authorized by numerous UNSC resolutions and supported by a clear majority of just war theorists.¹¹

COMPARATIVE JUSTICE OF CAUSE?

So the only just cause, for resorting to war, is in response to aggression. The response may be twofold: a war of self-defence on the part of the state victimized by aggression; and/or a war of other-defence, or “law enforcement,” on the part of any other state coming to aid the victim. Walzer, for one, is adamant that there is no such thing as a war just on both sides. All things considered, he believes, the evidence can point in only one of two directions: *either* that, in a given war, one side is the unjust aggressor, the other the justified defender *or* that the war is unjust on both sides (a not infrequent occurrence in the real world). This “either/or” thinking sets Walzer apart from earlier just war thinkers, such as Vitoria, who suggested that it might be possible for all sides in a war to have some quantum of justice. Walzer disagrees with this graded or scalar approach, not only because the aggression/defence paradigm essentially forces him to—it seems silly to say a state is two-thirds of an aggressor—but also because he reasons that Vitoria’s “comparative justice” conception confuses *jus ad bellum* with *jus in bello*. Vitoria included “comparative justice of cause” within his own account of *jus ad bellum* so as to mitigate the degree to which a state might pursue its otherwise just cause. Vitoria was afraid that a state with what we might call “100 per cent Justice” on its side would be especially ferocious in its conduct of war. It would have a Crusading mentality and obliterate the utterly unjust enemy. But Walzer contends, plausibly, that such mitigation can also be had from the distinct set of *jus in bello* rules. From the fact that just cause is defined by him in a binary way, *it does not follow* that a state satisfying its requirements is thereby justified in prosecuting its war effort however it likes. It must still confront and satisfy the rules of *jus in bello*, as contained for instance within the Hague and Geneva Conventions. More on the content of these rules will be found in Chapter 4.¹²

I too am sceptical of the older comparative conception, not only for the sound reasons Walzer gives, but also because it simply seems wrong in particular cases. What, for instance, was the comparative justice of Nazi Germany’s cause in World War II? I would claim that it was nil—that the Allies had *complete* justice on their side in that struggle, and that this cause was resisting brutal, unbridled Nazi aggression. But from the fact that the Allies were completely justified in terms of their cause, it does *not* mean they could do whatever they wanted to win—it only means they had a clear just cause to start fighting. Now for a crucial point: what about those who might say the Nazis had some claim for “*Lebensraum*” (i.e., “living room,” more space and territory for the large and ever-growing German people) and that

that was the small quantum of justice on their side? *But the fact that an actor in war claims his actions are just, does not make it so.* The actor, much like an accused person in court, must show how his *subjective* understanding of his actions actually corresponds to *objectively* plausible moral and legal principles, based on *inter-subjectively* available, shareable and discernible evidence. The point of just war theory, and the law of armed conflict, is precisely to serve as the objective principles in the process, and not to serve as the speaking points of rhetorical self-justification for any deluded dictator bent on aggression.

What is compelling in the thinking behind comparative justice is that the evidence in wartime can be difficult to interpret, and we can predict the players are all going to interpret it in a way maximally advantageous to their own interests. Some unscrupulous players will even lie, perhaps even fabricating phoney evidence. All this has been known to happen in wartime, and even to be committed by societies we're inclined to believe are decent. In World War I, Britain fabricated a fake "Zimmerman telegram" between Germany and Mexico wherein the Kaiser promised Texas to Mexico in exchange for Mexico's war partnership. Britain did this to spur American anger and entry into the war on Britain's side. And there is, of course, enormous controversy surrounding the evidence America enumerated in justification of its 2003 Iraq attack and subsequent regime removal. Iraq's weapons of mass destruction (WMD), Saddam's alleged connections to al-Qaeda, Bush Jr's pre-9/11 interest in Saddam's removal, possible CIA manipulation of data, Saddam's own lying about his residual strength: all these aspects figure in the debate about the justice of the start of that war. More on that war later; for now, we cite the old verity that "truth is the first casualty of war." War can make people desperate, and desperately self-justifying. I do not think this means the truth is impossible to find through the impenetrable "fog of war"—we now know the WMD claims were false¹³—but I do agree that it means we must subject war justifications to the most rigorous research scrutiny, and accordingly there is a duty for war-seeking governments to disclose publicly the evidence and sources behind arguments supporting something as deadly and far-reaching as war. Failure to provide such—especially when arrogantly citing a "national security" need to keep such information secret—renders the resort to war unjust. In war, both consequences and procedures are important, and the latter does not evaporate in the face of the former. One *can* be legitimately outraged in the face of aggression and take to the high road as a result, but one must *always* remain humble and truthful in the face of the evidence which proves such aggression. So I do not believe in comparative justice but I do believe in critical, ongoing examination of the evidence to determine who is the aggressor and who the defender—or whether, alternatively, it shows "a pox on both their houses" (i.e., injustice all around).

APPEASEMENT?

Victims of aggression are, in Michael Walzer's mind anyway, "always justified in fighting." In fact, in most cases, "fighting is the morally preferred response." Why is this so, especially when we realize that many—perhaps most—cases of aggression involve a (relatively) larger and more powerful state deploying its armed forces to coerce a less powerful state to make unjust concessions? Is not appeasement of the aggressor an *understandable* response from the victim, especially if that is its free collective choice? Is not neutrality, by third parties, a legitimate choice on their part, too? Walzer stresses that, ultimately, the decision to resist aggression, whether by the victim or by third party vindicators, can only be a free choice of the state in question. This follows from the right of political sovereignty. But he clearly articulates his preference in favour of resistance, especially by the victim. For resistance "confirms and enhances ... our common values [including] national pride, self-respect, freedom in policy-making" whereas appeasement "diminishes those values and leaves us all impoverished." Sometimes both appeasement and neutrality constitute "a failure to resist evil in the world." The unchallenged triumph of aggression is, Walzer asserts, "a greater evil" than war.¹⁴

By and large, I agree with this view on appeasement, yet sympathy arises in cases where small states are giving up simply to avoid the slaughter they would surely suffer if they fought back. Consider the difficulty of Edward Benes, the leader of Czechoslovakia in 1938–39, who woke one day to find the German army in his country and Hitler literally knocking on his door. When Benes met Hitler, the Nazi dictator gave him a stark choice: declare war and we'll slaughter you (we're already in control here militarily); or surrender and survive, but as part of the new Nazi empire. It is easy for us, with no stake in the decision, to say that Benes still should have fought, instead of giving up to save lives and to prevent his small country from being utterly demolished by its huge, well-armed neighbour.¹⁵ Resistance, after all, can take several forms—whether a direct military response to the first act of aggression, or an indirect guerrilla campaign after the aggressor has been allowed a temporary win.

The decision not to resist directly probably will come at the cost of some national pride and, more seriously, moral integrity. Contrast Benes' choice with the Finns' own choice, scarcely a year later, to resist an invasion by Stalin's USSR. The Finns to this day look back upon their armed resistance with pride whereas the Czechs have more of a mixed attitude. But in both cases the short-term outcome was inevitable: victory and conquest by the overwhelming invading force. National pride and moral integrity are important yet they remain abstract, unquantifiable things. Benes obviously reflected on their cost but, on the other side of the ledger, were things that clearly *could* be counted: if the Czechs fought back, thousands of his people would

die, infrastructure would be shattered, economic costs huge—and all merely to postpone the inevitable Nazi victory (at least at that time). I'm not saying the problem is insoluble, merely that it is difficult, and there are real costs no matter which option is chosen. While resistance is preferable because of the severe wrong of aggression, resistance can take several forms, and we have to respect people's free choices here—emphatically since it is their own lives and liberties on the line.

Right Intention

Having finished (for now) with the many complexities of just cause, we turn to the other five rules co-constitutive of *jus ad bellum*. Let us begin with Augustine's obsession with right intention. It is commonly thought, by just war theorists, that it is not enough to have an *objectively* just cause for going to war (like resisting aggression); you must also have the proper *subjective* intention, or state of mind, for your act to be moral. Why? Consider an analogy from personal life: say a child Billy steals a bicycle. Ethically, he must return it. But most of us think it is much better, morally, if Billy returns it because he is sincerely sorry (and not, say, because his parents order him or threaten him). His intentions and state of mind matter to our evaluation. Or suppose Sally drives through a red light, killing a pedestrian. We would evaluate that act very differently if we knew it was not an accident but, rather, brimming hatred and score-settling, that triggered the crash. Same physical act but different intention and thus a different moral evaluation: the latter is clearly worse than the former. Legally, for instance, the intention marks the difference between first-degree murder and mere manslaughter. A comprehensive system of morality seems not only to require the proper *external* behaviour but also *internal* reflection and the right attitude. It is more demanding to include right intention, true, but the whole point of morality is to demand a certain standard from people and the institutions they form.

Considering this rule's application to international affairs, Walzer observes soberly that "a pure good will [is] ... a political illusion." He also notes a vagueness in the just war tradition regarding whether this rule can be fulfilled only if there is *purity* of intention to secure the just cause, or whether it is possible to satisfy it, provided only that right intention is *present amongst the mix* of motives which usually animates state behaviour. Walzer himself opts for the latter course: he believes it is possible, and meaningful, to criticize some of the non-moral motives which states can have in going to war while still endorsing the moral motive. But that motive *must* be present: Walzer concurs that right orientation towards just cause is a necessary aspect of the justice of resorting to war. This is to say that it must be part of a state's subjective intention in pursuing war that it secure and fulfil the objective reason which gives it justification for fighting.¹⁶

A related question, which Walzer does not answer, is this: must the moral motivation merely be *present* in the mix of motives, or need it be *the main animating force* in the mix? Consider, for example, the mix of motives that the Allied coalition, led by the United States, might have had in 1991 for launching the first Persian Gulf War against Iraq: the repulsion of Iraq from Kuwait; the punishment of Iraqi aggression; the desire to secure the oil supply of the Persian Gulf region; President Bush Sr. wanting to demonstrate toughness in the run-up to the 1992 election; the desire by the United States to prove its superiority following the end of the Cold War with the Soviet Union; and the drive of the US military to test out its latest weaponry in real battlefield conditions, and perhaps to vanquish some ghosts left over from Vietnam. There are serious difficulties involved in discerning which motive dominates. Different parts of the American government, after all, might be seen as having had different intentions: which one would then count as the overall “dominant,” or conclusive, one? Short-term aims might also have differed from medium- and long-term ones: which was the definitive motivation? This makes it more plausible, though less interesting, to conclude that the moral motive need *only be real and present* amongst the various non-moral motives for this criterion to be fulfilled.¹⁷

Perhaps the difficulty in discerning correct motivation is one reason why the right intention rule—unlike just cause—is nowhere to be found in the international law of armed conflict. This is interesting, and in my view an unfortunate omission, for several reasons. First, it is clearly part of common moral discourse surrounding war to speculate on, and judge, a state’s resort to war based on its supposed motives. Both the first Iraq war (1991), and the second (2003), were labelled unjust by some people on grounds that America’s motives supposedly revolved around oil, and/or imperialism, and/or chauvinism against Arabs and Muslims. Purists might object that an agent’s intentions are a “mere” matter of ethics, whereas an agent’s *conduct* is all that justice is, and can be, concerned with. But this fails to persuade. It is, for instance, part of justice systems the world over to include considerations of intention and motive when it comes to people on trial for such crimes as murder. Moreover, such trials also give indication as to how one might gain reliable knowledge of another’s intent. *We know an agent’s intent through his conduct*. Intentions can be, and ought to be, discerned through a reasoned examination of publicly accessible evidence, relying on behaviour, consideration of incentives and explicit avowals of intent. Intentions are neither infinitely redescrivable nor irreducibly private and mysterious. They are connected to patterns of evidence, as well as constrained by norms of logical coherence, and so right intention is not an empty criterion for moral judgment during war. Though difficult, it is possible to tell whether a state is prosecuting a war out of ethnic hatred, for example, as opposed to vindicating its right of self-defence. Dark motivations produce distinctive and noticeable

results, such as torture, massacres, mass rapes, and large-scale displacements. We have the civil wars, in the 1990s, in the former Yugoslavia to offer as historical evidence. We will take a closer look at Bosnia next chapter.

Perhaps a deeper critical question should be raised here: can collective agents, like states, have intentions at all? Implicit here is a systematic analogy between the behaviour of states and the behaviour of individual persons. But does it make sense to speak of state “rights” and “intentions”? To refer to “crimes” which states commit against each other, like aggression, which should be “punished”? Of states acting for the right reasons, out of the proper motives? This is “the domestic analogy.”¹⁸ This analogy, which also infuses international law, implies that one of the most *useful* ways to understand how states behave vis-à-vis each other is to liken such behaviour to the way in which individuals behave vis-à-vis each other. It is important to note that this analogy need *not* involve any kind of “statism”: I have already said states are merely political associations, and their rights are derived from, and delimited by, the human rights of their individual members. The domestic analogy, rather, draws its vitality from the sheer difficulty of speaking about the behaviour of complex entities like states without employing simplifying assumptions—such as that they have a discernible identity, have intentions, face choices between alternatives, are thus responsible for their choices, and so on. It should also be emphasized that the domestic analogy is merely that: it is only generally persuasive and *neither* precludes the existence of important disanalogies *nor* commits us to a monolithic, naturalized and homogeneous conception of the state. The main point here is interpretive: we have *always* employed the domestic analogy in our moral and legal discourse about the ethics of war and peace; it is inherent in the deepest structure of our talk about morality and war; and we all understand what is meant by it. It is an irreplaceable aid to understanding in this regard.

LINKING THE CATEGORIES AND CALLING YOUR SHOT

One interesting aspect of right intention is whether it should be part of the justice of the resort to war that a state commit itself, both publicly and in advance, to adhering to the other rules of war, contained in *jus in bello* (the justice of conduct in war) and *jus post bellum* (the justice of peace treaties ending war). The idea here, first proposed by Kant, is that a state should commit itself to certain rules of conduct, and appropriate war termination, *as part of its original decision to begin the war*. Why? Because if it cannot so commit, it ought never to start the process. Unless a state pledges to fight in accord with the Hague and Geneva Conventions, and to terminate its war according to proportionate principles, it should never involve itself in such morally serious business as warfare. This seems an important and forward-looking way in which one could, so to speak, run a bright red thread through each of the three just war categories, *tying them into a coherent whole*.¹⁹ This

addition is compelling not only because of the moral import of an agent's intent but, moreover, to ensure consistency of just behaviour throughout all three phases of a military engagement. Thus, in addition to having one's subjective intentions (in going to war) be consistent with one's objectively just cause, one must also clearly and publicly commit, in advance of the war starting, to adhering to the other rules of just war theory.²⁰

In other words, I propose we understand the three just war categories as ultimately linked. We can separate them out for the purpose of focusing on different issues which different phases of war raise. But that just highlights things for the sake of analysis and perspective; it is not actually splitting the categories. I prefer to think of just war theory as forming one long procedure according to which each preceding step must be satisfied before setting on to the next one. This way of thinking stresses the value of each rule yet also properly emphasizes *just cause as the crucial opening note, which sets the tone for everything which follows*.

Another proposal I wish to make here is this: you have to call your shot, as in billiards. To tie it into the next rule: you have to declare publicly not merely your resorting to war but your *main reason* for resorting to war. This proposal is needed to block the "scatter-shot" approach to justifying war, where you throw out every possible argument in favour of war, hoping some will stick in terms of persuading the public or attracting evidence which will stand the test of time and scrutiny. This addition is needed for both historical and conceptual reasons.

In recent history, the "scatter shot" approach has been prominent, particularly in terms of America's 2003 Iraq attack and forcible regime change. Such was justified, we were told, because: 1) Saddam had WMDs, some of which could be deployed within forty-five minutes; 2) Saddam intended to give some of its WMDs to al-Qaeda, for use against America; 3) Saddam was actually involved with al-Qaeda in the 9/11 attacks; 4) Saddam needed to be overthrown as an act of humanitarian intervention on behalf of the Iraqi people; 5) Saddam posed a threat to regional security, especially regarding Israel and the Saudi oil fields; 6) Saddam kicked out the UN weapons inspectors in 1998 violating the Persian Gulf War treaty, which specified possible violent consequences for doing so; and 7) Saddam needed to be overthrown so as to create forcibly the first Arab democracy, which would serve as a Trojan Horse for better values throughout the Islamic world.²¹

Now, there's nothing wrong with having multiple reasons for going to war if these multiple reasons are all real and backed with evidence. What is wrong is mixing strong ones with weak ones so as to create a false impression of an "overwhelming pro-war case." Even if you do have multiple reasons, you have the right intention issue of whether you can plausibly intend them all. Human attention, and intention, is finite and needs to be focused. In my view, you need to focus on your main reason for going to war, have your intentions disciplined accordingly, and be prepared to be judged for how well you called

your shot. (This focus will also increase your probability of success, since achievement requires concentration and commitment, as opposed to running off in all directions.) This leads into the conceptual reason here: the “scatter-shot approach” is objectionable because war is such a serious and destructive business. You must know what you’re doing. And the “scatter-shot” approach, frankly, conveys the impression you do not. You’re just letting it all hang out, hoping at least some of it will gather the support you need. But to unleash the terrible “black dogs of war,” you need clear proof of a rock-solid reason for doing so, such as self-defence from actual aggression.

Public Declaration of War by a Proper Authority

War must be declared publicly by a proper authority. Why a *public* declaration? To inform the target, or enemy, country that they now face war and its substantial hazards. This also gives the enemy one last chance, prior to hostilities commencing, to cease aggression and begin a process of atonement. Such entitlement to public notification is codified in the Hague Convention III, which mandates that signatory countries must not commence conflict without “... previous and explicit warning, in the form either of a reasoned declaration of war or of an ultimatum with conditional declaration of war.”²² Public declaration also alerts one’s own citizens to the government’s intentions and plans. If state prerogatives in times of war are to be kept reasonably in line with the human rights of their members—which ground such state rights in the first place—we cannot lose sight of this just war criterion. The people must, in some public procedure, meaningfully consent to the launching of a war on their behalf.²³ More on the fuller meaning of this consent dimension later. For now, we continue to ask what “public” means. It means that the target country and one’s own citizens can reasonably be expected to be informed of a declaration of war. Whether that be done through an official press conference, a formal speech, or a vote in an elected assembly is not that material. Delivering an official notice of hostilities, say to the enemy country’s ambassador, is in my view nice (so to speak) but not required. What would fail to meet the meaning of a genuinely public declaration would be: burying a war declaration within another piece of legislation; or being insincerely cryptic in one’s language surrounding the military steps one is about to take; or, more plausibly and expectedly, to refuse to admit that a war is on when a *de facto* unleashing of armed force is already on display. Recall, from the Introduction, that war is an actual, intentional and widespread armed conflict between political communities wherein the ultimate objective is to force the other side to accept one’s will regarding governance.

The public declaration and domestic consent criteria need not preclude, or hamper the effectiveness of, rapid-fire responses to “blitzkrieg” attacks from dangerous aggressors. There are defensible procedures which can be

put in place for just such reasons: for instance, empowering the executive branch of the national government to command the armed services to ensure rapid deployment, and then requiring legislative branch oversight and eventually approval (or not) of the executive's actions.²⁴

DIVISION OF WAR POWER

Fundamental political issues arise when one considers which branch ought to be invested with the war power. The judicial branch is usually quite disempowered in this regard, with the executive and legislative branches enjoying—and often wrestling over—the vast majority of the war powers. America provides a compelling case study. On the face of it, Congress has the sole capacity to declare war. Yet the president also serves as Commander-in-Chief of the American forces. By convention, the president may deploy troops at will in all engagements short of war without Congressional approval. The precise definition of war can then become an important issue, as it did during Korea (1950–53) and Vietnam (1955–75). Executive orders to engage in “police actions” and “defensive operations” were issued, and some legislators argued angrily that war was being fought in violation of constitutional requirements for clear legislative endorsement. The War Powers Congressional Resolution of 1973 sought to clarify these issues, in particular by reasserting the authority of Congress.

In practice today, the president enjoys enormous short-term *de facto* control over the armed forces, thanks to his role as Commander-in-Chief which plugs him in directly to the military's chain of command. Congressional authorization of war thus suffers practical disadvantages, allowing the president at times to present Congress with a *fait accompli* for approval. More common in recent years—and emphatically since the 9/11 terrorist strikes—has been the president seeking, and getting, blanket authorization in advance of armed hostilities breaking out. There are some dangers with such a strategy. Yet Congress retains considerable medium- and long-term control over the armed forces, as it has within its powers sole final authority over military *expenditures*. The president may hold the whip of the war horse, so to speak, but ultimately Congress feeds it. This arrangement may represent a reasonable attempt to combine legitimate concerns—with enabling effective rapid responses that warfare often demands—with the ultimately deeper insistence that war must have public, constitutional authorization.²⁵

Should the judiciary play a larger role in the war authorization process? There are good reasons to keep the status quo of judicial disenfranchisement throughout most countries. The judicial process is, and probably should be, methodical and slow, potentially delaying vitally needed military action. Second, its very disenfranchisement is a reason, of a kind, to prevent it having a say in authorizing war: it has no relevant experience or precedents to draw on. Finally, in almost all countries, the judiciary is the farthest removed from

public authorization, *via* appointment rather than election to their office. Better to keep so momentous an issue as the war power closer to the public on behalf of whom it is exercised. The judiciary still has a vital role to play—in determining whether one of the other branches has exceeded its authority regarding war—but it should continue to have no substantive say in the authorization of war itself.

MINIMAL JUSTICE JUSTIFIED

Before leaving the domestic or national scene for consideration of the hot topic of international authorization of war, we need to reiterate and justify just war theory's standards on proper authority. These differ slightly, we have seen, from international law's. In legal terms, the proper authority for declaring war must be the constitutionally authorized body of a UN member state. We pointed out previously the limitations of having a purely legal standard without a background moral theory which explains why and how political communities, and the governments which organize them, can be legitimate and proper. This background moral theory is a conception of minimal justice, itself founded ultimately on the value of protecting and forwarding everyone's human rights. What justifies just war theory in anchoring its precepts in human rights? And here's where we really run up against it: are not these just Western values, ideological expressions of American imperialism—reflections of a Crusading mentality endemic to the Western mind? *The answer is no.* This accusation commits the "genetic fallacy," which is when one rejects an idea based on its origins instead of its merits, like when the Nazis resisted teaching relativity theory in German schools because it was devised by a Jew, Albert Einstein. The idea of human rights *did* originate in the West, but it *cannot* rationally be rejected on that basis alone. Indeed, the reason why it originated in the West was probably because the West needed it most: some of history's most gruesome human rights violations (like The Holocaust) occurred in the heart of Western Europe.

As for the merits, the concept of human rights has plenty going for it. It is genuinely *universal* in that everyone gets to claim human rights, and genuinely *beneficial* in that the things claimed—like the foundational five of security, subsistence, liberty, equality and recognition—serve both objective human need and subjective human want. Whatever else you want, you *must* want the life and liberty needed to pursue them. Life requires subsistence and security; security requires recognition from others and freedom from their domination; and liberty implies personal choice and the absence of brutal discrimination (i.e., equality). Everyone—not just Westerners—has overriding reason to believe in human rights and to work towards their realization. Human rights, perhaps alone amongst political concepts, genuinely acknowledges the worth of each individual human life and the importance of that life's

value being protected against all the other people, forces and institutions who might otherwise plot to use that life as a mere prop in their own projects.²⁶

This might be one reason why human rights attract so much cross-cultural consensus—in moral commitment and in international, regional and domestic human rights documents, protections and procedures. For example—and note the overlap—becoming a member of the UN commits a state, under the Charter, to realizing human rights.²⁷ Of course, human rights still get violated, but that *does not* count against their universality because the universality is normative, not descriptive. It is about what we *should* believe and how we *should* act, and this *cannot* be dislodged or undermined by the behaviour of rights-violators. They do not get to define justice, any more than thieves get to define property rights, or rapists bodily integrity. Indeed, is it not odd (and noticeable) how often the accusation of “Western moral imperialism” is made by those who wish to violate human rights? Think of various outspoken governments in East Asia or the Islamic world: they stand to lose enormously by the spread of human rights, so they have a huge incentive to resort to cultural chauvinism to stem the tide. But bad faith does not a good argument make.

Human rights, as a theory on how society should be shaped, is: 1) thinner; 2) more accessible; and 3) more widely beneficial than rival doctrines on political legitimacy. It is thinner because it focuses *only* on the most elemental aspects of good social interaction, leaving everything above the baseline open to different commitments and to cultural and even personal preferences. It is not a comprehensive world view the way communism was, or religion can be. This makes it more reasonable and accessible, as does the fact that the concept of human rights is pitched at every individual regardless of ethnicity, nation, religion, age, gender or language. The fact that human rights stand to benefit everyone also recommends the doctrine highly against those promising to benefit only, or disproportionately, the rich, or the workers, or the believers, or white people, or Americans, or adult males, and so on.

A longer-term reason justifying these thoughts on legitimacy concerns the link between the satisfaction of human rights domestically with peaceful behaviour internationally. Kant believed, and the recent researches of Michael Doyle support the notion, that rights-respecting societies do not go to war against each other.²⁸ There is, apparently, much empirical evidence substantiating this claim, otherwise known as the “democratic peace thesis.” In any event, it makes clear conceptual sense: if a government does not care about the rights of its own people, how is it going to start caring about the rights of a foreign state and its citizens? If we look at history, we see that the embodiments of international aggression have, indeed, made horrible domestic regimes: Nazi Germany, Stalin’s Russia, Hussein’s Iraq. There is a clear connection here, and it probably runs quite simply like this: a rights violator is a rights violator. A group engaging in domestic rights-violation

will not hesitate, if it can and if it wants, to violate rights internationally. That is why—and this is the profound conclusion—*we all have reason to be seriously concerned about rights-violating regimes wherever they are*. In fact, minimally just states have one further right as a consequence of these connections, and that is to do what they can, over the long term and in concert with others where needed, so that all states become human rights-respecting.

Finally, consider a straightforward macro-comparison, regarding quality of life, between those societies which generally respect human rights and those which do not. Where would you rather live: in Australia, Canada, Japan and Sweden or in Sudan, North Korea, Iran and Cuba? Human rights respect does *not* make for a perfectly just society, but history clearly suggests it makes for a better, more enjoyable life for the average person.²⁹

All these powerful reasons—of self-interest, of autonomy, of accessibility and universality, of strong consensus, of good consequences and connection to international peace—do not amount to “proof” of the “objective truth” of human rights. But such a proof is never forthcoming in moral and political life: sceptics holding such impossibly high standards can wait for Godot as long as they like. The rest of us realize that we have got to get on with the business of life and social organization, and here it is *the weight of reasons* which must be decisive, based on the *judgment* of sincere, sensible and experienced persons. In the final analysis, you must have a theory of legitimate governance to talk comprehensively about the ethics of war and peace. It is my judgment that an appealing and sound theory of governance must incorporate human rights. Ultimately, this is where the entire theory contained in this book rests: on the appeal of the idea of a minimally just, human rights-respecting society for everyone. Only states which are minimally just are entitled to rights, including the various war powers and authorities mentioned throughout this book.

INTERNATIONAL AUTHORIZATION?

We know, from our just cause discussions, that Article 51 of the UN Charter famously proclaims that, should an armed attack occur against a member state of the UN, both the victim and any vindicators have “inherent rights” (or “natural rights”) to self-defence and other-defence. So most international law experts agree that a United Nations Security Council (UNSC) vote is *not* needed to ground wars of self-defence or other-defence against obvious acts of cross-border aggression. That’s clear. But what about wars where such is *not* the case: the aggression is *not* clear-cut; or the violence stays *within* borders and does not cross them (i.e., civil wars or humanitarian catastrophes); or indeed no aggression has *even occurred yet* (as in anticipatory attacks or “pre-emptive strikes”)? Many international lawyers argue that, with these latter cases, UNSC authorization is absolutely necessary because: 1) they are not covered by the “inherent right” reference to self- and other-

defence in the face of armed attack; 2) they are clearly more controversial than straightforward defence against an act of aggression which has already happened; and 3) the background ideals of the Charter include substantial UN and UNSC responsibilities for war and peace. (Indeed, the very first article of the UN Charter declares that one of the UN's core purposes is to "maintain international peace and security," and Articles 23–54 detail exhaustive procedures and powers for the UNSC to deploy in pursuit of this ideal.) So, a pro-UNSC vote for action in any of these controversial cases is a must.³⁰

This was the position of most of the world in the run-up to America's 2003 Iraq attack. America was engaging in a pre-emptive strike (i.e., aggression had not yet happened), moreover one aiming to forcibly change the regime of a UN member. Thus, it needed a UNSC vote. It did not get one, and so the war was illegal and unjust. The official American line was different. While the UNSC did not vote explicitly in favour of "war" or an "American attack," it *did* demand Saddam resume UN weapons inspections or else face "serious consequences." Bush Jr. asserted that the war power was contained within the phrase "serious consequences" and so argued that UNSC authorization was in fact given. In any event, the Americans continued, the terms of the 1991 Persian Gulf War treaty (which was ratified by the UNSC in 1991) pledged Iraq to complete compliance with post-war measures, and also threatened a possible return to hostilities should complete compliance not be forthcoming. Since Saddam booted out the UN weapons inspectors in 1998, he was in violation of that UNSC resolution, which contained this explicit warning of, and authorization for, armed force. Failing all that, America said, the Iraq attack was needed to defend America from future acts of terrorism, and self-defence is indeed recognized by the Charter as an "inherent right."³¹

So who was right? It is not so clear if by "right" you mean "has the best interpretation of international law." Believe it or not, both sides have serious and strong legal arguments; and it is not obviously the case that one side is more powerful; and there's no overriding global legal authority to render a decision. Indeed I venture to say this is one of the reasons why international law is not completely satisfying in connection with *jus ad bellum*. Not only does it not directly deal with the hardest cases—like pre-emptive attacks, terrorist strikes, humanitarian crises and civil wars—the principles which it enumerates are not clear. Indeed, they are predictably vague because international law is the product of state consensus and it is very hard to get that on such controversial issues. The vagueness, in turn, allows for indeterminacy and for opposing sides to present strong arguments with little prospect of resolution. Thus, just war theory is stronger and more insightful on *jus ad bellum* than are the laws of armed conflict. (But note that the reverse is probably true in connection with *jus in bello*, where the detail of international law achieves incredible sophistication. See Chapter 4.) But if by "right" you mean who is morally correct, then please consult the next chapter for an investigation into the justice of the Iraq attack, where I think answers can be had.

Should we buy into UN claims about its sweeping authority in connection with international peace and security, which get asserted throughout the Charter and other documents in a very robust way? I personally believe that it is a very *desirable* thing to get UN authorization to go to war but I hesitate to say it is strictly *morally necessary*. On the one hand, requiring international authorization would represent one more barrier to overcome in any pro-war move, and so would make the resort to war more difficult. Isn't that a good thing? I guess so, but against that very point is that requiring international authorization might consume precious hours, days and weeks, with the result being that the aggressor gets entrenched and becomes more difficult to resist. We can easily imagine cases where the international community does not know enough, or care enough, about a local or regional war to get involved: so why give it authority in that regard? Let's leave it to the people with their fundamental interests and rights actually at stake.

There's also the very fitness and legitimacy of the UN and the UNSC themselves to consider. At any given time, only fifteen members are on the UNSC and, of those, only five hold vetos and permanent seats. These five form the world's most exclusive club, and they are all rich, northern, nuclear powers, and all but one is Western. What gives such an exclusive club the right to legislate on war and peace for the world—especially in regions they know quite little about? Second, it is important not to succumb to naïve and romantic ideas about what the UN *is*, based on visions of what it *might ideally become*. The UN is not a world government; it is merely a voluntary association of states. It has, over the years, faced searing questions about its competence, efficiency, treatment and oversight of staff, and even over its integrity. (The UN has recently been embroiled in a huge corruption scandal alleging thefts and kickbacks in its administration of the Oil-for-Food program in Iraq in the late 1990s.) And the UNSC record authorizing wars and peacekeeping missions is spotty at best. While the UN has had real success—over Suez, over East Timor—it has had many controversies and failures, such as Cyprus and Congo. UN peacekeepers were so ineffective in Bosnia they were actually taken hostage by the Serbs and, most notoriously, the UNSC failed to intervene at all in the near-genocidal civil war in Rwanda in the summer of 1994. *This*, we might ask, is the institution to which international lawyers would have us hand over ultimate authority on war and peace issues?

There is also the most important fact that, in spite of globalization, the state remains the crucial scene of political action in our lives. Recall that the UN is a voluntary association of states, and thus is ultimately their creature. The UN Charter itself enshrines state rights to political sovereignty and territorial integrity. And states remain, in terms of causal impact, the best poised to do serious harm to, or serious good for, their citizens. No wonder in recent history so many national groups have sought their own independent state, and why so much attention is paid to the legitimacy or moral quality of state structures. We still experience political life first and foremost as members of

nation-states—Americans, Brazilians, Canadians, etc.—and only secondarily (or even less) as citizens of the globe. We strongly prefer to live in groups; and while this fact never justifies shoddy treatment of other groups, it is a reality which must be accommodated by any theory of international justice.³²

My overall view on international authorization of war is this: it is certainly not required in straightforward cases of defence (whether of self or others) from actual aggression: no UNSC fiat could overturn those pre-existing rights of people. In more contested cases—humanitarian intervention and especially anticipatory attack involving regime change—the desirability of international authorization increases very considerably but might not even then, pending the details, strictly be required. I do not wish to be completely dismissive: at the very least, the UNSC always provides an ongoing forum for countries to discuss and debate these issues and to present their cases for going to war on a formal basis, and that is always going to be worth something indeed.

Last Resort

Winston Churchill once said, memorably, that it was far better to “jaw jaw” than to “war war” (i.e., to try to talk a problem over through diplomacy before fighting). Walzer concurs, observing that: “It is obvious that measures short of war are preferable to war itself.” He continues: “One always wants to see diplomacy tried before the resort to war, so that we are sure that war is the last resort.” In spite of this endorsement of the traditional last resort criterion, which is codified in Articles 2(4) and 33–40 of the UN Charter,³³ Walzer is quick with some helpful caveats. First, he points out that, strictly speaking, there is no such thing as a *last* resort. No matter how fearful the situation, there is always something else which can be tried—yet another round of diplomatic negotiations, for instance—prior to the resort to war. So it would be absurd, in this literal sense, to say that states may turn to war only as a last resort.³⁴ A second caveat concerns the fact that negotiations, threats and economic sanctions are frequently offered as morally better means of international problem-solving than the use of force. At face value, this claim is indisputable: if a reasonable resolution to the crisis in question can be had through a credible and permissible threat, or through a negotiating session, or perhaps through sanctions, then surely that is preferable to running the sizeable risks, and certain destructions, of war. Upon closer inspection, however, much depends on the nature of the particular act of aggression and the nature of the aggressive regime itself. Sometimes threats, diplomacy and sanctions will not work. The incidents leading up to the 1991 Persian Gulf War are instructive: Saddam Hussein, in the face of all three, refused to be budged from his ill-gotten Kuwaiti gains.³⁵ Care must be taken that appeals to last resort do not end up rewarding aggression, by giving the aggressor extra time to entrench himself inside the victim. Finally, Albert Pierce and

Lori Damrosch have pointed out that the levelling of systematic economic sanctions on an aggressor often violates the *jus in bello* principle of non-combatant immunity, since it is most often innocent civilians (often the poorest and most vulnerable) who bear the brunt of sweeping economic embargoes levelled on their country. In the absence of force directed against them, outlaw regimes always seem to find a way, within their own borders, to take care of themselves. The Hussein regime in Iraq, once more, offers lessons—surviving twelve years in the teeth of sweeping sanctions, which were then given up after the March 2003 US-led strike, that forcibly removed the regime from power. How much innocent civilian deprivation had to be endured while waiting for the sanctions to do their job—which they never did? I direct the reader to the relevant literature on the effects of the Iraqi sanctions in the 1990s.³⁶

It seems much more plausible to contend *not* that war be the literal last resort—after all other imaginable means have been totally exhausted—but, rather, that states *ought not to be hasty in their resort to force*. There ought to be a strong presumption against the resort to force. Article 2(4) of the UN Charter is clear evidence of our deep commitment to such a presumption. It reads that all UN Members “shall refrain ... from the threat or use of force against ... any state.”³⁷ But beyond this general principle, much depends on the concrete details of the actual situation in question. It is critically important, for example, when the aggressor is mounting a swift and brutal invasion, to respond effectively before all is lost. It is also relevant to consider the nature of the territory of the victim of aggression; if it is a tiny country, like Israel, the need for a speedy and effective response against aggression will likely be much greater than that required by a country the size and strength of the United States. Any response from the international community is likewise relevant. But attention must always be focused on the nature and severity of the aggressor and its actions, for frequently the international community is sluggish in mounting an effective response to aggression. The key question this criterion demands to be always asked, and then answered in the affirmative, is this: is the proposed use of force *reasonable*, given the situation and the nature of the aggression?

Probability of Success

Probability of success is another *jus ad bellum* rule for which only general principles can be convincingly conveyed. Its prudential flavour explains this: probability of success is always a matter of circumstance, of taking reasonable options within the constraints and opportunities presented by the world. The traditional aim of this criterion—which, like right intention, is actually *not* contained within international law—is to bar lethal violence which is known in advance to be futile. As such, the principle is laudable and necessary for any comprehensive just war theory. Great care, however, needs to be

exercised that this criterion, like last resort, does not amount to rewarding aggression, and especially that by larger and more powerful nations. This is so because smaller and weaker nations will face a comparatively greater task when it comes to fulfilling this criterion (which I think explains its absence from international law). And the calculation of expected probability of success for resorting to war is difficult. The vicissitudes of war are, as we know from history, sometimes among the most difficult phenomena to predict. Even when the odds seemed incredibly long, remarkable successes have sometimes, somehow, been achieved. Such are the stuff of military legend, like the ancient Greeks fending off the onslaught of Persians or perhaps even the American revolutionaries overthrowing the rule of the mighty lion of the British Empire. The lack of predictability, though, does not always turn out for the better. A notorious example is that the armies of Europe expected, in September 1914, to be home to celebrate Christmas.³⁸ Walzer also suggests that there are considerations of self-respect here, according to which victims of aggression ought to be permitted at least some resistance, should they decide on it, as an expression of their strong objection to the aggression and as an affirmation of their rights. It thus seems reasonable to judge that, given an act of aggression and given that the other *jus ad bellum* criteria are met, there is a presumption in favour of permitting some kind of armed response, even when the odds of military success (however defined) seem long. At the same time, this rule is not dormant: it remains important that communities contemplating war in response to aggression still consider whether such an extreme measure has any reasonable probability of success. That is the least, we might say, that they owe themselves.

Proportionality

Proportionality, codified at Articles 22–3 of the Hague Convention III, is one of the most contentious and challenging *jus ad bellum* criteria, ranking close to just cause itself. It mandates that a state considering a just war must weigh the expected *universal* (not just selfish national) benefits of doing so against the expected *universal* costs. Only if the projected benefits, in terms of securing the just cause, are at least equal to, and preferably greater than, such costs as casualties may the war action proceed. Walzer wrestles at length with the considerable difficulties presented by this otherwise sensible rule. On the one hand, the unchecked triumph of aggression is for him “a greater evil” than war. He also comments that “prudence can be, and has to be, accommodated within the argument for justice.” On the other hand, Walzer comments on “the terrible presumption” behind the cost-benefit comparisons implicit in appeals to proportionality. He declares that “we have no way that even mimics mathematics” of making such proportionality judgments. He asks rhetorically: “How do we measure the value of a country’s independence against the value of defeating an aggressive regime?”³⁹ In other words, how can we

pretend to measure, on the same scale of value, the benefits of defeating aggression against the body count needed to achieve it? For example, it sounds ridiculous—literally, groundless—to say things like: “My country’s freedom from aggression is worth \$300 million dollars and 245,000 casualties.” The numbers appear completely arbitrary, and the comparison between an abstract, like independence, and a concrete, like cash and casualties, seems as ill-conceived as one between apples and exchange rates—they are simply different things.

The challenges of proportional “calculation” explode, in both number and complexity, as soon as one puts further thought to the question. What things actually count as costs and benefits in wartime? Only elements we can *quantify*, like the body count and economic expenditures? But usually we also want to appeal to *qualitative* elements, like the value of sovereignty and not enduring life as slaves to a foreign invader. Is there a distinction between explicit and implicit costs, such as costs of mobilization on the one hand and, on the other, what else besides war might we have done with our time and treasure? Is there a difference between short-term and long-term benefits? Is it only the costs and benefits of prudence that matter, or do those of morality count as well? How to weigh the “universal” costs and benefits against each other when, usually during war, those who pay the costs *are not the same group* as those who enjoy the benefits, as when soldiers pay the present price for the future independence of their fellow countrymen? The manifest, and manifold, difficulties involved in proportionality calculations cause vexation for just war theorists, and rightly so. The calculations needed are simply too complex and wide-ranging. It is wildly improbable that we could ever devise a completely satisfying set of cost-benefit formulae with regard to wartime action. Far better, I believe, to stick to a firm set of clear and universal rules to guide conduct, which is what the rest of just war theory strives to offer.

Walzer’s final judgment on this issue, which seems sound, is that there is *some* truth in the proportionality maxim. But he insists that “it is a gross truth,” an unrefined and imprecise truth, which can only point to obvious considerations of prudence and utility *as limiting conditions* on the pursuit of rights-respecting justice in wartime. Proportionality, at best, provides some checks and balances, *some outside constraints*, on the drive to secure a just cause. In other words—and with some irony—we know much better what disproportionality is than proportionality. We can usually recognize the former but frankly have trouble precisely defining the latter. We know when a war is a disproportionate (i.e., exaggerated, harmful and inappropriate) response to a problem, just like we know that, within the context of a marriage, threatening divorce over a disagreement over what to have for dinner is disproportionate. Proportionality has, so to speak, negative content: it does not really positively add anything except to remind us that the problem in question has to be so severe (like unjust armed invasion) that war is, in fact, an appropriate

response—and to suggest that the good to be gained from the war must be better than the substantial costs and evils we know war always brings in train.

Providing some war examples, Walzer says that, even though justice may have permitted otherwise, it was appropriate on grounds of proportionality that the United States did not go to war against the Soviet Union after the latter invaded Hungary in 1956, or Czechoslovakia in 1968. The real threat of a broad-based nuclear exchange between the superpowers was simply greater, and more universally fearful, than allowing Soviet expansion at the particular expense of the independence of these nations.⁴⁰ Slightly different, more obvious, examples—deeper in history—include some of the old European wars sparked by marriage (or failure to marry) or failure to agree on who would succeed to the throne, or simply by some personal slight delivered to one monarch by another. None of these reasons balance with something as deadly as war as a “solution.” To go even farther back, if the Trojan War really was fought over Helen—“the woman whose face launched a thousand ships”—then we can certainly ask questions of justice whether ordering all that fighting and killing was truly proportionate to the problem.

Summary

This is a contemporary updating of the classical account of *jus ad bellum*. Any state, seeking to go to war against any other state, must show that its resort to armed force fulfils *each* of the six rules explained above: just cause; right intention; public declaration by a proper authority; last resort; probability of success; and proportionality. Failure to fulfil *even one* rule renders the resort to force unjust, and thus subject to criticism, resistance and punishment. This allows us to appreciate just how *demanding and stringent* is just war theory. The laws of armed conflict make much the same claims, except that they: 1) do not endorse the rules of right intention and probability of success; 2) are more vague; and 3) are based on a looser conception of political legitimacy. Just war theory is thus *even more demanding than international law*, which is predictable since, quite often, morality sets itself a higher standard than law.

Since *jus ad bellum* is the province of those exercising the war power—often, but not always, heads of state or the executive branch of government—it is their responsibility to ensure that its standards are fulfilled. By the same token, it is they who must answer for any *jus ad bellum* violations, for instance in war crimes trials after the war is over. As an illustration, consider that the Nazi high command, or what was left of it, was charged—among other things—with “crimes against peace” by the prosecutors during the Nuremberg war crimes trials after World War II. This is to say that they were accused—and many eventually convicted—of violating *jus ad bellum* (i.e., of committing aggression, of having waged an unjust war).⁴¹

The ultimate concepts and values underlying contemporary just war theory are the idea of a minimally just and therefore legitimate political community and the human rights of its individual citizens. It is for the sake of defending a minimally just state, and the human rights of its citizens, that we can morally contemplate the use of measures as forceful and destructive as those of war. We have this moral permission as a result of what aggression means—how it attacks the most basic values and possibilities of human civilization—and of the need to respond to it with effective resistance.

Case Study: World War II

Almost all just war theorists agree that World War II, on the part of the Allies, is the definitive modern example of a morally justified war, at least in connection with *jus ad bellum*. Let us briefly delve into this case, to see how the facts operate against the standards. For the sake of greater clarity and specificity, I shall focus mostly on the United States as the relevant actor. Of course, given the deep complexities of these real-world cases, attention cannot be paid to every element: the aim, in this section, is simply to give one application, of the six *jus ad bellum* rules, to a real and important historical case.⁴²

JUST CAUSE. Did the Allies, and particularly the US, have just cause in resorting to war between 1939 and 1941? It is clear that, in the European theatre, Nazi Germany was the embodiment of precisely that kind of ultra-aggressive, totalitarian, outlaw state which just war theory holds up as the kind of threat against which the resort to armed self- and other-defence seems most plausibly grounded. Imperial Japan was likewise an ultra-aggressive totalitarian regime. Both of these powers were blatant aggressors: Nazi Germany in Czechoslovakia in 1938, in Poland in 1939, and then in 1940 through the Low Countries into France; and Imperial Japan first in Korea in 1910 and then in China in the mid-1930s and then into the surrounding areas of the “East Asian Co-Prosperity Sphere.” There was no just cause whatsoever grounding the actions of these regimes: they were animated solely by desires for more territory, resources, power, glory—and even darker motives, related to their beliefs in their own ethnic superiority and their “racial destiny” to rule. Germany and Japan posed severe threats to those countries they invaded and, once they conquered them, subjected them to brutalizing rights-violative measures which still rank amongst the foulest in history. The commission of aggression caused both of these regimes to forfeit their state rights to non-interference and not to be attacked in return. So the Allies, as a matter of self- and other-defence, general rights-vindication and punishment for rights-violation, did no wrong—violated no rights—in responding with war. So the resort to war in 1939 by England and its Commonwealth, for instance, and in 1941 by the United States, was justifiable on this basis.

Indeed, in the case of the United States, resort to war was made (explicitly) only after the Pearl Harbor aggression by Japan, and Germany's accompanying declaration of war on America. The moral requirement to defeat such regimes stands out as one of history's most compelling causes for resorting to force.

RIGHT INTENTION. The Allies, in particular the United States, seemed to undertake World War II with the right intention, namely, the defence of their own nation and those of others, the defeat and punishment of aggression, and the repeal of its gains. Did the Allies display a reasonable commitment, prior to launching into war, to upholding the norms of *jus in bello* during its course and *jus post bellum* following its end? This is less clear, given the immense destruction that was eventually carried out during the war, and indeed is one of the reasons why I argued above that such ought to be newly incorporated into the right intention criterion. In fairness, the post-war actions and activities of the Allies—meaningful reconstruction of the defeated enemies, the Nuremberg and Far East War Crimes tribunals, and the formation of the UN—might, in retrospect, reveal some of the laudableness of their pro-rights intentions. In light of this conflicting data, perhaps all that can be said firmly, with regard to this criterion, is that the Allies really did seem to undertake the war with at least the proper *jus ad bellum* orientation of rights vindication.

PUBLIC DECLARATION OF WAR BY A PROPER AUTHORITY. Let us here take the case of the United States. America in 1941 was a minimally just society: widely recognized by the international community, with widespread and stable, uncoerced social peace domestically; it was not violating the rights of other societies; and it was seriously committed to the human rights and decent treatment of its citizens. America's explicit entry into the war, in 1941, was indeed declared through the appropriate constitutional channels, with both the executive and the legislative branches concurring. The declaration, on both Japan and Germany, was also publicly declared.

LAST RESORT. It seems that the Allies did not hastily rush into war in the 1939–41 period. England and France, the major Allied powers in Western Europe, made a serious diplomatic effort to placate Hitler with the Munich accords in 1938. (Indeed, many people subsequently condemned these accords for appeasing an aggressor.) Hitler disregarded any such aspirations for peace; in fact, he used the Munich process as a bad-faith cloak with which he could legitimize his past actions and disguise his future ambitions. He then launched his ultra-aggressive attempt to conquer Europe on behalf of the Aryan race. Similarly, the Soviet Union signed the Molotov-Ribbentrop pact of mutual non-aggression with Germany in 1939. The Soviet Union clearly wanted to avoid war. However, that pact was sundered when Hitler, having conquered continental Western Europe, proceeded to turn his sights

eastward in 1940–41. Indeed, it seems clear that, as of 1939–40 in Western Europe, and as of 1940–41 in Eastern Europe, there was no other feasible alternative to halting the aggression of Hitler than through the use of armed force. As such, the resort to war on the part of the Allies was not unreasonably quick.

It also seems that the United States' resort to war against Japan was not precipitate. After all, Japan had been committing aggression throughout East Asia, particularly in northern China and Korea, for many years prior to the outbreak of World War II. Secondly, Japan itself launched the armed attack on Pearl Harbor in 1941. Once Japan launched such a large-scale bombing raid, its intentions were clear and manifest: it wanted to fight the United States for supremacy in the Pacific. America was not hasty in resorting to force in light of that attack.

PROBABILITY OF SUCCESS. This criterion is less clearly fulfilled in the case of Allied countries like Poland and France, and perhaps even England, but it seems that the United States clearly fulfilled it. Even though it was to fight enemies on opposite sides of the world at the same time, the United States could reasonably have foreseen, in 1941, that its manpower, industrial sophistication and productive capacity, to say nothing of its military might, were second to none. It had every reason to believe, at the time, that it could eventually outproduce, outfight and overwhelm both of its enemies. And this would have been a strong argument even if those enemies were at the peak of their fighting capacity, which they were not: their earlier campaigns had drained huge military resources. With regard to Hitler, he was just beginning to be sucked into the endless morass of the campaign in Russia and was inordinately distracted, on the domestic front, by setting into motion the madness of the Holocaust. It was very predictable, in 1941, to see that Hitler, faced with the might of the Soviet Union on one front, and the nexus between England, her Commonwealth (notably Canada and Australia) and the United States on the other, was outmatched. He was sandwiched between huge powers. At the very least, it seems that the United States entered the European war with a considerable probability of success.

PROPORTIONALITY. It is very important to consider the extent of Allied, and especially American, fulfilment of this category solely in terms of *the time of the decision to resort to war*. It is reasonable to contend that no one could have foreseen, in 1939–41, the full and total extent of the immense costs and casualties of World War II, much of which were tallied up in the final few months of the war in 1945. At the time, say, of the American entry, it was reasonable to suggest that the defeat of these two ultra-aggressive regimes was worth the projected prudential and moral costs of doing so.

In terms of Japan, it could have been foreseen that this would be a difficult and costly war, given the ferocity and resources of the enemy and the logistics

involved in organizing fighting across the immense Pacific. But America had local allies in the Australians and the British based in Hong Kong. It could count on sympathy and support from civilian populations in China and Indonesia, which were under the Japanese boot. The nub of the matter was this: what choice did America have, given the Pearl Harbor strike? Japan wanted and started that war, so it was indeed appropriate to respond with armed defence.

In Europe, given that Hitler was going to be so clearly outgunned on both fronts, it would have been reasonable to contend, at the time, that the *military* casualties in Europe would be absorbable, and that damage to the United States itself would probably be negligible. One thing that would have weighed on the conscience at the time, however, was the quite foreseeable fact that, given Europe's population density, there would be considerable *civilian* casualties from stepping up the war effort, and moving onto the continent itself to roll Hitler back within his own borders. As we have seen, there is no uncontroversial calculus for balancing foreseen but unintended civilian deaths and the great importance of defeating regimes like Nazi Germany. But Walzer, for one, clearly believes proportionality was met, and he justifies himself thus:

Nazism was an ultimate threat to everything decent in our lives, an ideology and a practice of political domination so murderous, so degrading even to those who might survive, that the consequences of its final victory in World War II were literally beyond calculation, immeasurably awful. We see it (and I do not use the term lightly) as evil objectified in the world, and in a form so potent and apparent that there never could have been anything to do but fight against it.⁴³

Notes

1. Cicero, *De Re Publica*, (III, 23), trans. R. Regan at p. 16 of his *Just War: Principles and Cases* (Washington, DC: Georgetown University Press, 1996).
2. M. Walzer, "World War II: Why Was This War Different?" *Philosophy and Public Affairs* (1971/72), 3–21.
3. For the laws of armed conflict themselves, see Appendix A. Consult also W. Reisman and C. Antoniou, eds. *The Laws of War* (New York: Vintage, 1994); A. Roberts and R. Guelff, eds. *Documents on the Laws of War* (Oxford: Oxford University Press, 1999) and G. Best, *War and Law since 1945* (Oxford: Clarendon, 1994).
4. J. Locke, *Two Treatises on Civil Government* (Cambridge: Cambridge University Press, 1988); J. Narveson, *Respecting Persons in Theory and Practice* (Lanham, MD: Rowman and Littlefield, 2002).
5. B. Orend, *Human Rights: Concept and Context* (Peterborough, ON: Broadview Press, 2002).
6. Orend, *Human Rights*, *passim*; J. Nickel, *Making Sense of Human Rights* (Berkeley, CA: University of California Press, 1987); J. Rawls, *The Law of Peoples* (Cambridge, MA: Harvard University Press, 1999).

7. B. Orend, *War and International Justice: A Kantian Perspective* (Waterloo, ON: Wilfrid Laurier University Press, 2000), 89–126.
8. I. Brownlie, ed. *Basic Documents in International Law*, 4th ed. (Oxford: Oxford University Press, 1995); T. Nardin, *Law, Morality and The Relations of States* (Princeton: Princeton University Press, 1983); T. Pogge, *Realizing Rawls* (Ithaca, NY: Cornell University Press, 1989).
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10. T. Abdullah, *A Short History of Iraq* (Toronto: Pearson, 2003); L. Freedman and E. Karsh, eds. *The Gulf Conflict, 1990–91* (Princeton: Princeton University Press, 1993); W. Danspeckgruber and C. Tripp, eds. *The Iraqi Aggression Against Kuwait* (Boulder: Westview, 1996).
11. D. Decosse ed. *But Was It Just? Reflections on the Morality of the Persian Gulf War* (New York: Doubleday, 1992); James T. Johnson and G. Weigel, eds. *Just War and Gulf War* (Washington, DC: University Press of America, 1991); A. Beyer and B. Green, eds. *Lines in the Sand: Justice and The Gulf War* (Louisville: John Knox, 1992).
12. Walzer, *Wars*, 63–72; F. de Vitoria, *Political Writings*, ed. A. Pagden and J. Lawrence (Cambridge: Cambridge University Press, 1991).
13. B. Woodward, *Plan of Attack* (New York: Simon and Schuster, 2004); US Congress, *The 9/11 Commission Report* (Washington, DC: United States Congress, 2004).
14. Walzer, *Wars*, 51, 67–72, and 233–38.
15. It must be noted that Benes' decision was controversial amongst his own people. For more, see E. Benes, *My War Memoirs* (London: Greenwood, 1971).
16. Walzer, *Wars*, xix.
17. Walzer, *Wars*, xix-xx.
18. Walzer, *Wars*, 58; H. Suganami, *The Domestic Analogy and World Order Proposals* (Cambridge: Cambridge University Press, 1989).
19. Thanks to Thomas Pogge for the image.
20. For more on this proposed addition to right intention, and the original Kant scholarship, see Orend, *Kantian Perspective*.
21. Woodward, *Plan*; W. Murray and R. Scales, *The Iraq War* (Cambridge, MA: Harvard University Press, 2003).
22. Reisman and Antoniou, eds., *Laws*, 40.
23. Walzer, *Wars*, 34–40 and 138–43.
24. This is not to say that only Western-style constitutional democracies can fulfil this rule: clearly different regime types can and should publicly declare war. But that fact will not stop me from discussing issues of special importance to Western societies, such as the division of war powers.
25. L. Fisher, *Presidential War Power* (Lawrence, KS: University of Kansas Press, 1995); and Regan, *Principles*, 20–47.

26. H.L.A. Hart, "Are There Any Natural Rights?" *Philosophical Review* (1955), 175–92; A. Gewirth, *Human Rights* (University of Chicago Press, 1982); H. Shue, *Basic Rights* (Princeton, NJ: Princeton University Press, 2nd ed., 1996); O. O'Neill, *Constructions of Reason* (Cambridge: Cambridge University Press, 1989).
27. Brownlie, *Law*, 255–387.
28. M. Doyle, "Kant, Liberal Legacies and Foreign Affairs," *Philosophy and Public Affairs* (1984), 204–35 and 323–53; and M. Brown, et al, eds. *Debating the Democratic Peace* (Cambridge, MA: MIT Press, 1996).
29. I detail the pros and cons of justifying human rights versus their critics in Orend, *Human Rights*, 67–100 and 155–90.
30. Reisman and Antoniou, eds. *Laws*, 3–35; Regan, *Principles*, 20–47 and 213–31.
31. Woodward, *Plan*.
32. M. Walzer, *Thick and Thin* (New Haven: Yale University Press, 1995).
33. Reisman and Antoniou, eds., *Laws*, 3–9.
34. Walzer, *Wars*, 84, xiv.
35. Walzer, *Wars*, xiii-xiv.
36. Walzer, *Wars*, xxv-xxxii; A. Pierce, "Just War Principles and Economic Sanctions," *Ethics and International Affairs* (1996), 99–113; L.F. Damrosch, "The Collective Enforcement of International Norms Through Economic Sanctions," *Ethics and International Affairs* (1994), 60–80; G. Simons, *The Scourging of Iraq* (New York: Macmillan, 2nd ed., 1996); R. Clark, *The Impact of Sanctions on Iraq* (London: World View Forum, 1996) and A. Arnone and A. Abunimah, eds. *Iraq Under Siege* (London: South End Press, 2000).
37. Regan, *Cases*, 214; and Reisman and Antoniou, eds., *Laws*, 5–9.
38. Walzer, *Wars*, 67–74.
39. Walzer, *Wars*, xv-xxi.
40. Walzer, *Wars*, xv-xxi.
41. J. Persico, *Nuremberg: Infamy on Trial* (New York: Penguin, 1995).
42. A.J.P. Taylor, *The Origins of the Second World War* (New York: Atheneum, 1962); J. Keegan, *The Second World War* (New York: Vintage, 1990).
43. Walzer, *Wars*, 253.